

APPENDIX XI
(Rule 40 (3))
LEASE DEED

(Applicable to Government owned Sites in the Delhi States
revised terms)

This Lease made this 23rd day of February
of the year One thousand nine hundred and eighty Three
between the President of India, (hereinafter called the Lessor
which expression shall, unless the context requires another
and different meaning include his successors and assigns) of
the one part and Sh. KRISHAN LAL s/o Shri Sunder
BHAN (hereinafter called the Lessee" which
expression shall, unless the context requires another different
meaning to mean and include the said Shri Krishan Lal
his heirs, executors, administrators, representatives and
permitted assigns) of the other part.

WHEREAS the Lessor has agreed to demise to the Lessee
the land described in the Schedule hereunder written upon the
terms and conditions hereinafter appearing and contained).

NOW, this Indenture Witnesseth that in consideration of
the premium of Rs. 1550-00 only paid before the execution
of these presents the receipt whereof the Lessor hereby
acknowledges and the rent hereinafter reserved and of the
covenants by the Lessor hereinafter contained the Lessor doth
demise unto the Lessee all that piece of land containing by
admeasurement 100 Sq yds or thereabouts
situated in Plot No. 107 in C.P. E.P. II Sub. Na. VMD which
said plot of land is more particularly described in the schedule
herunder written and with the boundaries thereof has for
greater clearness been delineated on the plan annexed to these
presents and thereon coloured red, together with all rights,
appurtenances and appurtenances to the same belonging save and
except all mines and mineral products buried treasure, coal,
petroleum, oil and quarries whatsoever in/under or within the
said land with liberty for the Lessor and his lessees, licences,
agents and workmen and all other persons acting on his behalf
to dig, search for, obtain and carry away the same on making
reasonable compensation to the Lessee on account of any disturbance
or damage that may be caused thereby to the surface of the
said land or any building standing thereon and that such
compensation shall in case of dispute be determined by an officer
appointed by the Lessor for this purpose, as nearly as may be,
in accordance with the provisions of the Land Acquisition Acts
or Regulations for the time being in force, whose decision
thereon shall be final.

TO HOLD THE said land unto to the Lessee for the term of
99 (Ninety nine) years commencing from 28.3.58
yielding and paying therefore the yearly ground rent of
Rs 112-00 at the rate of Rs. 1 per annum per hundred
square yards or fraction thereof at the State Bank of India,
Now Delhi or at such other place as may be notified by the
Lessor for this purpose from time to time.

(a) Rent will not be subject to revision except as
provided for in (d) hereof.

Raymond Kumar Mehra
Attorney of
Krishan Lal

(b) The Lessee shall before any assignment or transfer of the said premises hereby demised or any part thereof obtain from the Lessor approval in writing of the said assignment or transfer and all such assignees and transferees and the heirs of the Lessee shall be bound by all the covenants and conditions herein contained and be answerable in all respects therefor.

(c) The Lessee can transfer the land after obtaining the permission of the Lessor aforesaid and the Lessor will not share any unearned increment in the value of the land (being the difference in the premium paid by him to the Lessor and the market value of the land then prevailing) for permitting such transfer. The Lessor will, however, be entitled to claim and recover the unearned increment in the value of land in the event of any subsequent transfer of the land by a transferee the amount so to be recovered being 50% of the unearned increment in the value of the land.

In the case of any subsequent transfer the Lessor shall have the pre-emptive right to purchase the premises as hereby demised and all the buildings and structures standing thereon, after deducting 50% of the unearned increment as aforesaid.

(d) The Lessor shall also have the right to revise the annual ground rent at the time of any assignment or transfer of the premises hereby demised subsequent to the first transfer of assignment as aforesaid. The revised ground rent payable in such case shall be at the rate of 2½ per cent of the value of the land at the time of such transfer.

Provided further that in the case of any transfer or assignment subsequent to the first transfer or assignment the Lessor shall also have the right to revise the ground rent hereby reserved on the first day of January of the year following the year in which thirty years from the date of such subsequent transfer or assignment shall be complete and thereafter at the end of each successive period of not less than thirty years, provided that the increase in the rent fixed at each enhancement shall not at each such time exceed one half of the increase in the letting value of the site without buildings at the date on which the enhancement is made and such letting value shall be assessed by the Collector or Deputy Commissioner of Delhi: PROVIDED always that any such assessment of letting value for the purpose of this provision shall be subject to the same right on the part of the Lessee of appeal from the orders of the said Collector or Deputy Commissioner and within such time as if the same were an assessment by a Revenue Officer within the meaning of section 50 of the Punjab Land Revenue Act, 1887 (Act XVII of 1887) and the proceedings for or in relation to any such appeal shall be in all respect governed by the provisions of the said Act in the same manner as if the same had been taken thereunder.

(e) The ground rent will be paid in advance in half yearly instalments on the 15th January and 15th July each year. The ground rent shall be payable for the full half year for the period from the date of purchase.

Rayminder Kumar Mehta
Attorney of
Kishore Lal

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Ray m. d. Kumar Mehta
Attorney at Law
Kishore Lal

or the grant of a lease of the site on the 15th January or 15th July next following as the case may be and shall be paid by the purchaser advance at the time of such purchase.

1. The Lessee doth to the intent that the burden of the covenants may run with the said land and may bind any permitted assignee thereof hereby covenants with the Lessor as follows:

i) to pay the rent on the days and in the manner herein before appointed for payment thereof and also to pay all taxes, rates and assessments that now are or may hereafter during the said terms be imposed upon the said land or buildings erected thereon or upon the Lessor or Lessee, his permitted sub-lessee or assignee in respect thereof, under any enactment for the time being in force.

ii) within the period of 24 calendar months next after the date of these presents the 27-3-60 from the 24th day of March 1958

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The Lessee shall and will at his own expense erect and finish fit for habitation on the site hereby demised one building* single storeyed containing one residential flat or *double storeyed consisting of one or two residential flat in all with a barsati on top, as may be approved by the Chief Commissioner, Delhi or such officer or body as the Lessor or the Chief Commissioner, Delhi may, authorise in this behalf together with all necessary outhouses, sewers, drains and other appurtenances in accordance with a plan to be approved of in writing by the Chief Commissioner, Delhi or such officer or body as the Lessor or the Chief Commissioner, Delhi may authorise in this behalf. And all the drains and sewers for the said premises shall be constructed laid and connected to the satisfaction of the Chief Commissioner and the appropriate Municipal authority and in such position as shall be directed by the said Chief Commissioner or as may be required by the said Municipal authority.

iii) before the buildings on the said site are occupied connect the same with the gravitating sewers and to lay on water to the said buildings in the manner directed by an officer appointed by the Lessor in this behalf and to employ a plumber duly approved by the said officer to make and do all such connections and works, provided, that when the sewage or water systems are not extended to the said house/quarter at the time the said buildings are occupied, the Lessee shall, within 30 days from the extension of the sewage and water systems to the said house/quarter connect gravitating sewers and lay on water in the manner and according to the instructions and through the agency above mentioned.

iv) to maintain the premises and all buildings thereon in sanitary condition according to the directions of the officer appointed by the Lessor.

(v) not to erect more than one building* single storeyed containing one residential flat or *double storeyed consisting of one or two residential flats in all, with a barsati on top, as may be approved by the Chief Commissioner, Delhi or such officer or body as the Lessor or the Chief Commissioner, Delhi may authorise in this behalf, except such outhouses and servant quarters as may be approved by the Lessor. Any servant

Agreed & Signed
Attorney of
Kishan Lal

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quarter constructed by the Lessee shall not without any written permission of the Chief Commissioner, Delhi be occupied or permitted to be occupied otherwise than by the bonafide servants of the persons occupying the main building.

(vi) not without the written consent of the Chief Commissioner Delhi, to carry on or permit to be carried on, on the said land and buildings erected thereon during the said lease any trade or business whatsoever or use the same or permit the same to be used for any purpose other than that of a single storeyed building consisting of one residential flat or a double storeyed building consisting of one or two residential flats in all, with a barsati on top, as may be approved for the locality or as provided in the building already erected on the said land,

(vii) not to sub-divide the said land or building erected thereon or any part thereof without the prior permission of the Lessor in writing,

(viii) not to do or permit anything in or upon the demised premises or any part thereof which may be or become a nuisance, annoyance or cause damage to occupiers of other property in the neighbourhood,

(ix) to register all changes in the possession of the whole of the said land or of the building erected thereon whether by transfer, succession or otherwise in the register kept in the office of the local authority having jurisdiction in the area in which the said land is situated (the expression local authority shall include the Delhi Improvement Trust) for this purpose within one calendar month from the respective dates of such changes (and if such changes are registered in the local sub-registry under the Indian Registration Act, 1908 within one calendar month from the date of registration in such sub-registry) and if the Lessee shall without sufficient cause neglect to register such changes in the manner aforesaid with the Lands Officer appointed by the local authority for this purpose, the Lessor may impose on him for each such case of neglect a penalty not exceeding Rs. 100 and the Lessor may in addition to the other remedies available to him under these presents enforce the payment of such penalties in the same manner as in the case of arrears of land revenue.

(x) that all persons acting under the orders of Lessor shall be at liberty at all reasonable time in the day time during the said term to enter upon the said land or any building that may be erected thereon for any purpose connected with the lease.

(xi) the lessee and his successors and assignees shall on the determination of the lease on the expiry of the period of 99 years yield up the demised premises with all buildings erected thereon and land lord's fixtures thereto, provided that the lessor shall pay to the Lessee the value of the said buildings and fixtures at the date of determination of the tenancy, such value to be determined in the absence of agreement, by a sole arbitrator agreed upon by both the parties or in the absence of such agreement by two arbitrators, one to be appointed by each party. The provisions of the Arbitration Act, 1940, and any statutory modification

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Attorney at Law
Kishore Lal

modification thereof shall apply to any such arbitration. The lessee may however renew the lease of the land after the expiry of 99 years on such terms and conditions as considered necessary by the Lessor.

(xii) if during the period of the lease the premises are required for public purpose or for any administrative purpose by the Lessor, the Lessor shall at the expiry of a notice of fifteen days to the effect that the said premises are required for such purpose to be served upon the Lessee by an officer appointed by the Lessor in this behalf, be at liberty to take possession of the land together with all buildings, structures and appurtenances. The Lessee shall be entitled to compensation in respect of the land, buildings and structures. The compensation payable under this clause shall, in case of dispute be determined by the Lessor or by such officer as he may appoint for the purpose, as nearly as may be, in accordance with the provisions of the Land Acquisition Act or regulation for the time being in force relating to the same and the decision of the Lessor or such officer shall be final and conclusive.

(xiii) any sum of money due to or claimable by the Lessor in respect of the land hereby demised shall be recoverable by the Lessor as an arrears of land revenue under the provisions of the Punjab Land Revenue Act, 1887 (XVII of 1887) and any amending Act for the time being in force.

II. If the yearly rent hereby reserved on any part thereof shall at any time be in arrear and unpaid for one calendar month next after any of the said days whereon the same shall have become due, whether the same shall have been demanded or not, or if there shall have been in the opinion of the Lessor or the Chief Commissioner of Delhi whose decision shall be final, any breach by the Lessee or by any person claiming through or under him of any of the covenants or conditions hereinbefore contained and on his part to be observed or performed then and in any case it shall be lawful for the Lessor or any person or persons duly authorised by him notwithstanding the waiver of any previous cause or right of re-entry upon any part of the premises hereby demised or of the building thereon in the name of the whole to re-enter and thereupon this demise and everything herein contained shall cease and determine and the Lessee shall not be entitled to any compensation whatsoever, nor to the return of any premium paid by him.

III. No forfeiture or re-entry shall be effected except as herein provided without the permission of the Chief Commissioner of Delhi and Chief Commissioner shall not permit such forfeiture or re-entry until the Lessor has served on the Lessee a notice in writing.

Agimales Kumar Mehta
Attorney of
Kishore Lal

(e) Specifying the particular breach complained of:

(b) If the breach is capable of remedy, requiring the lessee to remedy the breach, and the Lessee fails within a reasonable time from the date of service of the notice to remedy the breach, if it is capable of remedy, and in the event of forfeiture or re-entry the Chief Commissioner may in his discretion relieve against forfeiture on such terms and conditions as he thinks proper.

Nothing in this clause shall apply to entry for breach of covenant against unauthorised sub-division.

In WITNESS WHEREOF the President of India has caused Managing Officer on his behalf to set his hand herunto and the Lessee has herunto set his hand the day and the year first above written.

The Schedule above referred to: Plot No D-IV-70, Pt. II

Lajpat Nagar New Delhi

Area 100 Sq. Yds

Signed by Asst. Secretary to Government of India
for and on behalf of President of India
in the presence of New Delhi, 110011

1. Yashwanth Kumar D.S. NO

2. Chandulal

Signed by Rajinder Kumar Mehta Attorney at Law
the Lessee in the presence of

1. Rajinder Singh 8/17 Lajpat Nagar New Delhi - 110065

2. Prithvi S. T.E-11 Lajpat Nagar



General power of attorney,

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Be it known to all to whom it may concern that I shri Krishan Lal son of Late Lala Inder Shan, resident of W.2.85, Shadi Khampur, opposite West Patel Nagar, New Delhi 110008, do hereby appoint, nominate and authorise shri Rajinder Kumar Mehta son of shri Om Parkash Mehta, resident of D-IV/70, Amar Colony, Lajpatnagar, New Delhi, as my true and lawful General attorney to do the following acts, deeds and things in respect of my property no. D-IV/70, Amar colony, Lajpatnagar New Delhi.

1. To manage, control, supervise and conduct all the matters in respect of the said property.
2. To reply to any letter or notice issued by the appropriate authority, to sign on all the documents needed for the said purpose by the concerned authority.
3. To appear in the office of chief settlement commissioner, Government built wing, Department of Rehabilitation, Managing officer, GBP wing, Land and Development officer, Nirman Bhawan, New Delhi, M.C.D and New Delhi Municipal Committee and other concerned department and perform all the duties needed in this respect by the concerned authority.
4. To pay the balance price of the said property with the concerned authority, to receive the lease and conveyance deed on my behalf from the office of the Managing officer, GBP. CSC's office, New Delhi, sign on all the papers, collect the documents in this respect, to file affidavit for getting the lease and conveyance deed and also present the said documents for registration with the Sub Registrar, New Delhi and get the documents registered and pay the registration fee etc on my behalf and do all other acts required in this respect.

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 Kailash Lal S/o Tindar Bk
 C.P.O. 1210
 S. 11/10

glt
 removed by S. J. S. Sh. Krishan Lal
 S/o. W/o. Sh. Tindar Bk
 R/o. in the Office of the Sub Registrar
 Delhi. On 10/11/82 this 11/11/82
 19 between the house of A. K. S.
 Sub Registrar
 Nr. Delhi.

22 Kailash Lal 10/11/82

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 Sh. Krishan Lal
 Execution address by the said Sh. J. S.
 R/o. identified Executant
 by Sh. J. S. R. S. R. Appa
 and Sh. J. S. R. Appa
 R/o. identified by
 the said Sh. J. S. R. Appa
 and Sh. J. S. R. Appa
 Sub Registrar
 Nr. Delhi.
 10/11/82

Kailash Lal
 Overwritten
 for am



5. To enter into an agreement for the sale of the said property, to receive the sale amount and give proper receipt thereof.
6. To apply for the sale permission of the said property, to sign on the documents needed by the office of the L.&D. Nirman Bhawan, New Delhi, for getting the sale permission.
7. To execute a regular sale deed in favour of the purchaser or his/her nominee, present the documents for registration in the office of the sub registrar, New Delhi & get the documents registered in the office of concerned Registering authority & complete all the sale documents: To file affidavit & declaration for this purpose.
8. To get the mutation effected in the name of the purchaser and sign on all the documents in this respect.
9. To appear on my behalf in the office of the Incometax, obtain the clearance certificate of incometax on my behalf and sign on all the relevant papers and complete all the formalities required in this respect.
10. That this power of attorney is irrevocable.
11. To deposit all the dues of the L. & D.O. and get the Supplemental deed on my behalf, sign on the said documents and present the same before the sub registrar, concerned.
12. To attend all courts, offices, departments, give statement on my behalf and pursue all the matters on my behalf, to compromise the case and sign on all the papers on my behalf.
13. To let the said property on rent, to receive the rent, to give proper receipt thereof and to take action against the defaulting tenant for eviction and recovery of rent and attend all proceedings on my behalf, to receive the decretal amount to file affidavit, declaration etc in this respect.
14. To rebuild the said property, to submit the plan for sanction to the concerned authority and perform all jobs needed in this respect.
15. Generally to do all other acts, deeds and things if needed if the same are not covered by the foregoing clauses.

I do hereby ratify & confirm that the acts, deeds and things done by the said attorney, as acts done by me and bind on me.

In witness whereof I have signed this deed of attorney on 10-11-82 at New Delhi, in the presence of the following witnesses.

witnesses.

1.

[Signature]

[Signature]

2. *[Signature]*

[Signature]

[Signature]
Executant.

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and left the 4-95-11/11/82
been taken in the 11/11/82

Sub Registrar
11/11/82

